

Maharashtra (Urban Areas) tree protection and conservation

Proposed Amendments to the Act, 1975.

Maharashtra government

Department of Environment and Environmental Change

Government circular, number PAM 2021/ Procur.26 / TAN.K.4

Madame Kama Road, Huttama Rajguru Square

Ministry, Mumbai 400032

Date: 24th June, 2021

Circulars:

Maharashtra for the protection, conservation and conservation of trees in urban areas of the State

The Maharashtra (Urban areas) Protection and Conservation Act, 1975

Preservation of Trees Act, 1975), which came into existence in October, 2020.

It has been transferred from Department of Development to Department of Environment and Environmental Change.

2. Maharashtra (civil areas) tree protection in line with environmental protection, conservation and conservation.

And in view of the important provisions of the Conservation Act, 1975,

The State Cabinet has made a proposal to transform it into an Act with the inclusion of reforms.

Recently, the Maharashtra (Urban Areas) Tree Protection and Conservation Act, 1975 was passed.

The notes of the proposed amendments have been attached as attachment 1.

The action is being taken independently from the government level.

3. Maharashtra (civil areas) tree protection and conservation as approved by the State Cabinet.

Local tree authorities in the state until the enactment of substantive amendments in Act, 1975.

Instructions are given as follows which they should follow:

(Local Tree Authorities should approve cases at their level subject to the proposed amendments to the Maharashtra (Civil Areas) Tree Protection and Conservation Act, 1975.

(2) Since the proposed reforms are to establish the Maharashtra State Tree Authority at the State level, the following proposals which fall within the scope of Maharashtra Tree Authority should be prepared for submission to them:-

(a) Proposal to cut down the heritage tree.

(b) Proposals for cutting down more than 200 trees aged five years or more. To ensure that projects will not be subdivided into smaller sections to keep the number of trees within the Mad limit.

Government Decision No: Tree A 2021/ W.H.2G / tan.k.4

8. Government circular on the website of the Government of Maharashtra at www.maharashtra.gov.in.

It has been made available under code 202106241720487604.

Certified by digital signature.

By order and name of the Governor of Maharashtra.

SURYAKANT KISAN NIKAM

Secretary, Government of Maharashtra with S. K. Nikam:

-0

Minister, Environment and Environmental Change, Private Secretary, Ministry, Mumbai

Minister of State, Environment and Environmental Change, Private Secretary, Ministry, Mumbai

Principal Secretary, Department of Environment and Climate Change, Ministry, Mumbai-32

Departmental units (all)

District Attorney (all)

Commissioner, all municipalities

Regional Deputy Director, Municipal Branch, Departmental Affairs Office (Svi district administration officer, Municipality branch, District Magistrate's office)

) Chief Magistrate, Municipal Council / Municipal Panchayat (all)

10) Department of Selection, Environment and Environmental Change, Ministry, Mumbai

AD

AN

Cc ws

an

eC

23> <:-<-- <-:- > 8:- OLDS US

S

Ss

vo

Page 5 of 2

Couple - 1

Maharashtra (Urban Areas) Tree Protection and Conservation Act, 1975

areas) Proposed amendments to the Protection and Preservation of Trees Act, 1988

The formats are as follows:-

1 The concept of Heritage Trees and the necessary action programme to preserve them

7 Trees aged 50 years or more will be defined as Heritage Trees (Ancient Trees) which may belong to specific species. Such species will be notified from time to time.

2) The age of the tree:

The Department of Environment and Climate Change will issue guidelines in consultation with the Department of Forests on existing practices to determine the age of trees.

The age of a tree is an important factor in giving heritage tree status and determining the number of trees to be planted under sustainable planting.

3) Compensation planting:

The number of trees that are being cut down is the number of new trees to be planted as a replacement plantation.

When planting 7 seedlings should be planted at least 6 to 8 feet high.

© This plantation should be planted in the same place. If there is no space available, this plantation can be grown in public land.

7 Geo-tagging of planted trees for up to seven years

It will be necessary to do so.

7 If a tree cannot be planted as a compensation, it can be cut down.

Applicants can collect an amount not less than the tree valuation.

4) Cutting down a large number of trees:

Proposal to cut down more than 200 trees aged five years or more

It will be forwarded to the Maharashtra State Tree Authority.

7 Even if the Maharashtra State Tree Authority recommends cutting down trees, Local Tree Authorities may request the State Trees Authority to reconsider their decision.

Page 3 out of 5

7 The local tree authority should ensure that the number of trees covered by the scheme is maintained.

5) Establishment and duties of Maharashtra State Trees Authority: Establishment of the Maharashtra State Tree Authority:

© A Legislative Authority will be set up at the state level to decide on tree conservation.

7 Authority structure shall be as notified from time to time.

The main functions:

7 Periodically monitor the functioning of the local tree authority.

Protection and conservation of heritage trees across the state.

Hearing of applications for the removal of heritage trees.

Applications for cutting down more than 200 trees aged five years or more

Hearings.

7 Any other activities related to conservation and tree conservation

6) Structure of local tree authorities:

© Arborists will be part of the local tree authority.

Decisions taken by the Tree Authority will be based on consultation of tree experts.

In the case of City Council, the Chairman of the Trees Authority shall be the Chief Magistrate.

7 Duties of Local Tree Authorities:

7 To ensure that trees are counted every five years

Calculation and conservation of heritage trees

7 Planting and conservation of native species

7 Ensure the sustainability of all land plants within the scope of the Urban Local Authority
to do.

7 Plants planted on land owned by local authorities or government

To ensure that the planting is done in a scientific manner,

In terms of conservation and forestry, the area under cultivation should be at least 33%.

It will.

Ensure that tree care and pruning is carried out in a scientific manner and under the guidance of experts.

7 Determination of crops and maintenance for compensation.

© Ensuring the use of tree accessories for tree conservation.

7 Other duties/responsibilities appointed by Maharashtra State Tree Authority from time to time

Performing.

Government Decision No: Tree 201YV Pro.26/ TH.

8)

Tree counting:

7 Count the trees at least once every five years.

7 Promote the use of new technologies (GIS App).

9)

Collective land for cultivation:

e

The Local Tree Authority will ensure land for planting purposes.

e

Planting should be done in a scientific manner.

e

Planting of native species to improve green spaces

It should be encouraged.

If space is not available, compensation planting can be done on public land.

Some of the following planting methods can be adopted.

(a) The Miwaaki plantation

(ब)

Amrit Forest

(क)

The Forest of Memory

Urban forests

(ड)

(10)

Replanting of trees:

© Replanting should only be carried out under the guidance of experts.

The estimated age of the tree to be replanted should be as planting compensation.

(11)

Alternative projects for tree conservation:

7 Alternatively, the minimum number of trees to be cut down in the design of the project.

Options should be considered.

(12)

Tree tools:

© Maharashtra Tree Authority will issue guidelines for the use of tree equipment.

(13) Provisions of penalty:

The amount of the fine will be charged as notified from time to time.

The maximum amount of 7 trees will be limited to Rs 1 lakh per tree.

eS

Page 5 of 5

Local machine translation generated from source file: 202106241720487604.pdf. This output is for research use and requires human verification.